

Bullying and Harassment Training


Infinity Supports WA
ACHIEVING GOALS AND BEYOND

HUMAN RESOURCES
FOCUS



Topics covered during this training session



Code of Conduct

- **The Code of Conduct applies to all employees.**
- **The Code of Conduct describes the expected standards of behaviour and conduct for all employees across the business.**
- **Employees are expected to observe high standards of ethics, integrity and behaviour whilst working for Infinity Supports WA.**
- **Employees are required to act professionally and be courteous to all fellow employees, clients and their families.**

Code of Conduct – Standards of Behaviour

The standards of behaviour expected include:

- Complying with all company policies, procedures, rules and regulations
- Following management instructions
- Being honest and fair in all dealings
- Wearing the company uniform correctly and with pride
- Not stealing from the company or from clients
- Not discriminating against others

- Reporting all breaches of conduct
- Being punctual
- Working safely at all times
- Not making false allegations
- Not embarrassing other employees or clients
- Not coming to work under the influence of drugs or alcohol
- Not swearing or fighting in the workplace

Bullying – What is bullying?

- Infinity Supports WA aims to provide a safe and healthy work environment, so far as reasonably practicable, in which all workers are treated fairly, with dignity and respected.
- Bullying is a risk to health and safety in the workplace and will not be tolerated.
- We have company policies in place that outline the legal responsibilities of the employer and employees in relation to preventing bullying in the workplace.

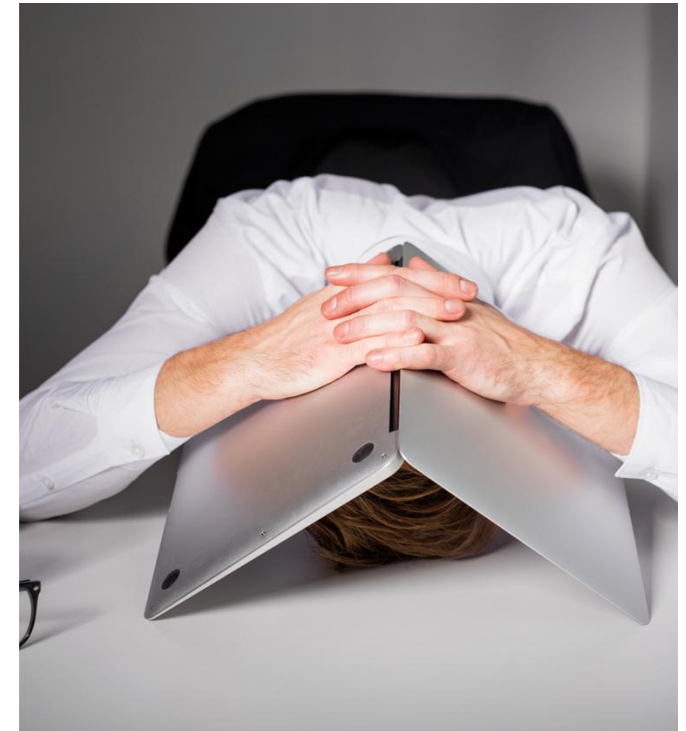
Bullying at work is when a person or group of people repeatedly behave unreasonably towards another worker or group of workers and the behaviour creates a risk to health and safety.



Bullying – Examples of bullying

Examples of bullying can include but is not limited to:

- Behaving aggressively towards others – for example, shouting or using an intimidating tone
- Teasing or playing practical jokes
- Pressuring someone to behave inappropriately
- Excluding someone from work-related events
- Unreasonable work demands
- Spreading rumors



Bullying – What is NOT bullying?

There are some actions that do not constitute bullying. Some examples include:

- If it is only 1 single incident (bullying is repeated behaviour)
- Reasonable management action carried out in a reasonable manner. This includes legitimate:
 - performance management processes
 - action taken to transfer or retrench a worker
 - a decision not to provide a promotion in connection with the workers employment
 - disciplinary actions
 - allocated work in compliance with systems and policies
 - injury and illness processes
 - business processes, such as, workplace change or restructuring

Bullying – Our responsibility

Employers

- Employers have a legal responsibility to provide a safe workplace.
- Employers have a duty of care to employee's health and wellbeing whilst at work.
- An employer that allows bullying to occur in the workplace is not meeting their responsibilities.

Employees

- Employees have a moral responsibility to help create a positive and safe workplace.
- If someone in your workplace is experiencing bullying or harassment, you can tell them about the steps they can take to solve it.

Employees should not ignore bullying.

Discrimination

Discrimination is treating, or proposing to treat, someone unfavourably because of a personal characteristic protected by the law.

You should not harass or otherwise treat a worker (or prospective worker) differently or less favourably because they:

- Come from a different background
- Have different religious beliefs
- Are male, female or otherwise do or do not identify with a particular gender
- Are married or not married
- Are or are not pregnant
- Are or are not homosexual, bisexual or otherwise identify with a particular sexual preference/orientation
- Have carers' responsibilities, family responsibilities, carer or parental status or are childless
- Have any disability/impairment, including physical, mental and intellectual disability
- Breastfeed

Discrimination - Continued

- Are or are not a particular age
- Are or are not a member of a trade union
- Have a medical record that is not relevant to their employment
- Have a criminal record that is not relevant to their employment (including spent convictions)
- Have or do not have human immunodeficiency virus (HIV) and/or acquired immune deficiency syndrome (AIDS)
- Have the need to take leave for the purposes of Defence services
- Past or present association (i.e. association with a worker who has one or more of the attributes for which discrimination is prohibited)

This is not an exhaustive list. Please see the full policy.

Sexual Harassment – What is it?

Under the Fair Work Act, sexual harassment is:

- An unwelcome sexual advance
- An unwelcome request for sexual favours
- Other unwelcome conduct of a sexual nature in relation to another person.

To be sexual harassment, it has to be reasonable to expect that there is a possibility that the person being harassed would be offended, humiliated or intimidated by the behaviour.

This means that whether behaviour is sexual harassment depends on how a reasonable person would interpret the behaviour in that situation.

Behaviour that is sexual harassment in one situation may not be in a different situation.

Sexual Harassment – Examples

Some examples of sexual harassment can include:

- Inappropriate physical contact, such as unwelcome touching
- Staring or leering
- A suggestive comment or joke
- A sexually explicit picture or poster
- An unwanted invitation to go out on dates
- A request for sex
- Intrusive questioning about a person's private life or body
- Unnecessary familiarity, such as deliberately brushing up against a person

Sexual Harassment – Examples

- An insult or a taunt of a sexual nature
- Sexually explicit email or text message

This is not an exhaustive list.

Sexual harassment doesn't have to be repeated or continuous.

It can be a one-off incident.

Sexual harassment in connection to employment can be considered serious misconduct and can be a valid reason for dismissal.

Where to get help

If you think bullying, discrimination or sexual harassment has occurred in the workplace, you can seek help from:

- A Supervisor or Manager
- Director of Business
- A Health and Safety representative
- The Union – if relevant
- Employee Assistance Program